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|     |                                                      | <p>initial burden, the burden did not shift to Plaintiffs and the motion must be denied without regard to Plaintiffs' evidence. "In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to the disposition of the motion." (Code Civ. Proc. § 437c(q).)</p> <p>Moving Party to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                           |
| 111 | Ramirez v. FCA US, 2023-01367066                     | <p><b>MOTION FOR SUMMARY JUDGMENT – GRANTED</b></p> <p>Defendant FCA US, LLC ("Defendant") moves for summary judgment on Plaintiff's complaint under the Song-Beverly Act.</p> <p>The Unopposed Motion is GRANTED pursuant to Rodriguez v. FCA US, LLC (2024) 17 Cal.5th 189. Defendant sustained its burden to establish the causes of action lack merit under Rodriguez because the subject vehicle was purchased used by Plaintiff (UMF No. 1-3) and the Song-Beverly Act only provides protection to purchasers of new motor vehicles.</p> <p>Thus, the burden shifted to Plaintiff to establish the existence of a triable issue of material fact. Plaintiff failed to file any opposition; and therefore failed to sustain his burden.</p> <p>Defendant to give notice and submit a proposed judgment.</p> |
| 112 | Savalia v. Cigna Healthcare of Calif., 2026-01550386 | <p><b>DEMURRER TO COMPLAINT – SUSTAINED WITH LEAVE TO AMEND</b></p> <p>Defendant demurs to all 7 causes of action in Plaintiff's complaint. Plaintiff has not filed opposition to the demurrer. The Court may construe Plaintiff's failure to oppose the demurrer as an abandonment of Plaintiff's claims or an admission that the demurrer has merit. (See Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20 ["Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue</p>                                                                                                                                                                                                                                         |